

|     |                                                         |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
|-----|---------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|     |                                                         | <p>The motion is granted as to the prayer for monetary damages on cause of action number two. (<i>Civ. Proc. Code § 436.</i>)</p> <p>Defendants also request the court strike the prayer for punitive damages. Punitive damages are only available if a plaintiff pleads sufficient facts under one of the three prongs of <i>Civ. Code § 3294</i>. The only prong Plaintiffs attempted to allege is the fraud prong. (FAC ¶¶ 7, 16, 22, 31, Prayer No. 2.)</p> <p>"Fraud must be pleaded with specificity rather than with " 'general and conclusory allegations.' " [Citation.] The specificity requirement means a plaintiff must allege facts showing how, when, where, to whom, and by what means the representations were made. . . [Citation.]" (<i>West v. JPMorgan Chase Bank, N.A.</i> (2013) 214 Cal. App. 4th 780, 793.)</p> <p>While Plaintiffs might allege facts which support extortion Plaintiffs' do not allege sufficient facts which support fraud in that action.</p> <p>The motion is granted as to punitive damages. (<i>Civ. Proc. Code § 436.</i>)</p> <p>Plaintiffs are given leave to file an amended complaint within 15 days of written notice of the ruling.</p> <p><i>Defendants to give notice.</i></p> |
| 9.  | Trujillo v, Hyundai Motor America<br>25-1511691         | (Moot)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 10. | Baluch Brothers Development LLC v. Pukini<br>23-1346229 | <p>The motion by Ryan Young as individual and in capacity as Trustee of the Young Family Trust and the Young Ryan Trust for an order granting judgment on the pleadings is <b>DENIED</b>.</p> <p>There is no proof of service showing the motion was served on the plaintiffs. <i>Cal. Rules of Court, rule 3.1300(c)</i> requires a proof of service to be filed at least five court days prior to the hearing.</p> <p>Accordingly, the motion is <b>DENIED</b>.</p> <p><i>Mr. Young is ordered to give notice.</i></p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 11. | Hasan v. Hasan<br>24-1408848                            | <p>Before the Court is a motion to disqualify Plaintiffs' counsel Fred Padres (Padres) filed by defendants Malik Hasan and Seeme Hasan (Defendants). For the reasons set below, the motion is <b>DENIED</b>. Plaintiffs' request for sanctions is also <b>DENIED</b>.</p> <p>Defendants' original request for judicial notice is <b>DENIED</b> as irrelevant and Defendants' request for judicial notice submitted for the first time with the reply is <b>DENIED</b> as untimely.</p> <p>The court has inherent power "to control in furtherance of justice, the conduct of its ministerial officers, and of all other persons in any manner connected with a judicial proceeding before it, in every manner pertaining thereto." (<i>Code Civ. Proc. § 128, subd.(a)(5).</i>) This includes the power to disqualify counsel in appropriate cases. (<i>In re Complex</i></p>                                                                                                                                                                                                                                                                                                                                                           |